Voter Identification Laws and the Suppression of Minority Votes

Zoltan Hajnal, University of California, San Diego
Nazita Lajevardi, University of California, San Diego
Lindsay Nielson, Bucknell University

The proliferation of increasingly strict voter identification laws around the country has raised concerns about voter suppression. Although there are many reasons to suspect that these laws could harm groups like racial minorities and the poor, existing studies have been limited, with most occurring before states enacted strict identification requirements, and they have uncovered few effects. By using validated voting data from the Cooperative Congressional Election Study for several recent elections, we are able to offer a more definitive test. The analysis shows that strict identification laws have a differentially negative impact on the turnout of racial and ethnic minorities in primaries and general elections. We also find that voter ID laws skew democracy toward those on the political right.

Voting is the bedrock of democracy. Through the vote, citizens choose leaders, sway policy, and generally influence democracy. By contrast, citizens who do not vote can be ignored. It is thus not surprising to see that the laws that shape turnout and determine who can and who cannot vote generate enormous attention and controversy. The latest front in this debate concerns voter identification laws.

Voter identification laws have been a topic of discussion since 1950, when South Carolina became the first state to request some form of identification at the polls (NCSL 2015). Since then, more and more states have instituted some form of voter ID law. But it is only within the past decade that the strictest forms of voter ID have proliferated and that voter ID laws have received widespread attention.

Today these voter ID laws take several distinct forms. Strict voter ID laws require identification in order to cast a regular ballot. Other more lenient laws request, but do not require, voters to show some kind of identification document at the polls. These laws can also be distinguished by whether or not they allow or consider nonphoto identification.

All told, 34 states currently enforce some form of a voter identification law (NCSL 2015). Of these, 11 are strict ID law states that require a person to show identification in order to vote.[1] More states appear to be waiting in the wings. New Mexico, Nevada, Iowa, and others are all considering new stricter voter identification laws (NCSL 2015).

The consequences of all of this could be enormous. Given that more than half of the nation's population is currently subject to these laws, that stricter laws are being considered in multiple states, and that the courts are actively evaluating the merits of these laws in a series of landmark cases, there is a compelling need to know exactly what the true impact of these laws is.

There is no shortage of opinions about these laws. On one side, the proliferation of these laws raises real concerns for critics who believe that they are unnecessary and ultimately detrimental to democracy. Activist groups, like the Brennan Center for Justice, claim that voter ID laws serve as effective barriers that limit the legitimate participation of racial and ethnic minorities and other disadvantaged groups (Weiser 2014).

Zoltan Hajnal (zhajnal@ucsd.edu) is a professor of political science at the University of California, San Diego. Nazita Lajevardi (nlajevar@ucsd.edu) is a lawyer and a PhD candidate at the University of California, San Diego. Lindsay Nielson (ln009@bucknell.edu) is a visiting assistant professor of political science at Bucknell University.

We would like to thank the Russell Sage Foundation and the University of California, San Diego, Academic Senate for their generous support of this project. Data and supporting materials necessary to reproduce the numerical results in the paper are available in the *JOP* Dataverse (https://dataverse.harvard.edu/dataverse/jop). An online appendix with supplementary material is available at http://dx.doi.org/10.1086/688343.

1. Current strict ID states are Arizona, Georgia, Indiana, Kansas, Mississippi, North Dakota, Ohio, Tennessee, Texas, Virginia, and Wisconsin.

Correction: This article was corrected and reposted on March 2, 2017. A sentence was removed from the Robustness section and figure 4 was revised. An erratum will be published in the April issue.

The Journal of Politics, volume 79, number 2. Published online January 5, 2017. http://dx.doi.org/10.1086/688343
© 2016 by the Southern Political Science Association. All rights reserved. 0022-3816/2017/7902-0001$10.00

The right to vote, according to these detractors, should not only be afforded to people with a certain means. Using this line of reasoning, former US Attorney General Eric Holder has equated voter ID laws to poll taxes. Likewise, US Supreme Court Justice Ruth Bader Ginsburg has called the laws "purposely discriminatory" (Lowry 2014). Indeed, for some, the growth of voter ID laws represents one of the most pressing civil rights issues of our time. Critics also believe that there is almost no voter fraud and thus little reason to enact these laws in the first place.[2] The Voting Rights Institute, for example, bemoans these laws as "an unnecessary, expensive, and intrusive voter restriction" (Voting Rights Institute 2015). Within this framework, the only winners are Republican leaders who employ these laws to hijack the democratic process and bias outcomes in their favor. If these critics are correct, voter identification laws are having widespread consequences not only for who wins and who loses but also for the representativeness and fairness of our democracy.

However, this debate is far from one-sided. Proponents, including most prominently Kris Kobach, Kansas's secretary of state, claim that they are warranted and that they do not reduce the participation of citizens (Kobach 2011). They are warranted, according to supporters of the law, because fraud is a real and potentially widespread phenomenon that could alter electoral outcomes and erode faith in democracy. Advocates also argue that voter identification laws do not reduce the participation of citizens because they do not prevent legitimate voters from entering the voting booth. For the Americans who have identification, the laws raise no new barriers. For the tiny subset of Americans who do not, the requirement represents a small hurdle that is easily overcome. Moreover, the American public strongly favors these laws (Coren 2014). From this perspective, the passage of these laws ensures that only eligible Americans participate and restores trust in the democratic process.

Who is right? Are these laws simply minor alterations that serve only to reduce fraud, or are they major barriers that substantially alter who votes and who wins in the American political arena? The key to answering this question and to determining the benefits or drawbacks of voter identification is to provide hard empirical evidence of the actual consequences of voter identification laws.

EVALUATING VOTER ID LAWS

Unfortunately, despite all of the partisan and political debate, we have relatively little empirical data on the consequences of these laws. Several studies have identified areas of concern that could ultimately lead to large, negative consequences for American elections. Although the findings have been disputed, several studies appear to have uncovered a relatively large number of Americans without proper identification (Barreto and Sanchez 2014; GAO 2014). Others have shown that a lack of identification is particularly acute among the minority population, the poor, and the young (Ansolabehere 2014; Barreto, Nuno, and Sanchez 2009; Barreto and Sanchez 2014; but see Alvarez, Bailey, and Katz 2011).[3]

A different set of researchers has attempted to assess whether the existing laws are applied evenly and have found that poll workers disproportionately ask minorities for identification (Ansolabehere 2009; Atkeson et al. 2010, 2014; Cobb, Greiner, and Quinn 2012; Rogowski and Cohen 2014; White, Nathan, and Faller 2015). There is even some evidence that in a small set of cases provisional ballots that should have been counted have ultimately not been included in vote tallies (Pitts 2013). Finally, there is at least tangential evidence of the political motivations behind the passage of these laws. These laws are generally passed by Republicans and tend to emerge in states with larger minority populations and greater partisan competition (Bentele and O'Brien 2013; Hicks et al. 2014). All of this evidence suggests that the consequences of voter identification could be severe.

There are, in short, many reasons to suspect problems with these laws. Yet none of these studies assesses the actual consequences of these laws. The core question is not who could be affected but is instead who is affected. At the end of the day, do voter ID laws reduce participation and skew the electorate in favor of one set of interests and against another set of interests?

On this core question, the results are decidedly mixed. The main published studies find little to no effect on overall turnout (Ansolabehere 2009; Mycoff, Wagner, and Wilson 2009). But several non-peer-reviewed studies do find significant declines in turnout in states enacting voter ID laws (Alvarez et al. 2008; Dropp 2014; GAO 2014; Vercellotti and Anderson 2006). On the question of who votes and who does not, the research is equally divided. The few published studies that have looked for differential effects by race have found none (Alvarez, Bailey, and Katz 2008, 2011; Hood and Bullock 2012; Milyo 2007; Mycoff et al. 2009), but some more recent non-peer-reviewed work has found that voter ID laws are especially harmful to minorities (Dropp 2014; GAO 2014). In the end, few scholars have been able to effectively counter the

2. Research has uncovered little documented evidence of significant voter fraud (Ahlquist et al. 2014; but see Richman et al. 2014).

3. Supporters of these laws counter that most of the citizens without ID are not voting anyway.

literature's core conclusion that "voter ID does not appear to present a significant barrier to voting" (Ansolabehere 2009, 129).

LIMITATIONS OF THE EXISTING RESEARCH

Can it be that voter identification laws actually have minimal effects on American democracy? We believe that there are three fundamental problems with the tests to date. The first problem is that scholars have almost exclusively analyzed elections that occurred before the strictest voter identification laws were put in the place. States that have nonstrict laws still allow people to vote if they do not have ID, so these laws might have little impact. If the major effects of voter ID laws only occur when states require voters to present identification before voting, then existing studies generally are not actually assessing the impact of these laws.[4] The rapid and very recent proliferation of these laws means that any research that examines the vote in anything but the last election cycle or two will miss most of the effects of these laws. As a result, most existing studies are likely to understate the significance of these laws. Arguably then, we do not yet know if strict forms of voter identification matter.

Another core problem with much of the existing analysis is that it focuses on self-reported rather than validated turnout. Self-reported turnout is much higher than actual turnout (Ansolabehere and Hersh 2012; Silver, Anderson, and Abramson 1986). More critically, those who overreport turnout differ by race and class from those who do not overreport turnout. Racial minorities, in particular, are particularly prone to overreport their participation in elections (Abramson and Clagget 1991; Shaw, de la Garza, and and Lee 2000). All of this makes it extremely difficult to assess the racial and class effects of voter ID laws using self-reported turnout.

Finally, despite all of the discussion about how these laws benefit Republicans and hurt Democrats, there has been little empirical analysis of the political consequences of strict voter ID laws. Several studies have assessed the political and partisan motivations for adopting these laws, but more work needs to be done on how these laws ultimately affect the mix of partisan and ideological voters (Bentele and O'Brien 2013; Hicks et al. 2014). We do not yet know if those on the political left—Democrats and liberals—are hurt by these laws. Given that these laws have been instituted almost entirely by Republican legislatures, and given critics' strong assertions that these laws are enacted to enhance Republican electoral fortunes, this is a major omission.

A MORE DEFINITIVE TEST

Fortunately, we are able to rectify each of the problems that we believe are largely responsible for the null findings in the literature. First, in order to capture the effects of the recent arrival and proliferation of strict identification laws, we concentrate our analysis on turnout in the five most recent election cycles. Specifically, we examine data on individual voter turnout from 2006 to 2014 using the Cooperative Congressional Election Study (CCES). Since the study has large samples from every state in each election cycle, we can compare turnout by different subgroups in every state to see if strict voter ID laws alter turnout. In our sample, we have data on turnout in a large number of elections with strict voter ID laws in place. Specifically, we can incorporate into our analysis turnout patterns in 51 elections (26 general election contests and 25 primary contests) across 10 states with strict voter identification laws in place.[5] Further information about the coding of the all of the states and their voter ID laws in effect from 2006 to 2014 is available in the appendix, available online.

Another benefit of this newer data set is that we are able to single out states with strict identification requirements. Unlike previous studies that have tried to assess voter ID laws through a scale that orders laws from weakest to strongest, we begin by focusing exclusively on states that require identification to see if these relatively new strict laws have an impact.

Second, in order to get around issues related to the overreporting of voting by different groups, we focus exclusively on the validated vote. In the CCES data that we analyze, each reported vote is checked against official voting records to determine if each respondent who claimed to vote actually did.[6]

Finally, using the CCES, we can begin to examine shifts in turnout across party identification and political ideology. Specifically, we can assess whether or not Democrats and liberals are more burdened by voter ID laws than Republicans and conservatives.

The analysis itself is fairly straightforward. We compare turnout of individuals in states with strict identification laws to turnout of individuals in all other states after controlling for other state-level electoral laws that encourage or discourage participation, the context of each election in each state and

4. All but one of the existing published studies assessing differential turnout look at data from 2006 or earlier, when there were no strict photo ID states. Hood and Bullock (2012) includes 2008 data but only looks at one election in one state with strict voter ID laws in place.

5. Strict voter ID elections in our data set are these: 2014 (AZ, GA, IN, KS, MS, ND, OH, TN, TX, VA); 2012 (AZ, GA, IN, KS, OH, TN, VA); 2010 (AZ, GA, IN, OH); 2008 (AZ, GA, IN, OH); 2006 (AZ). The primary vote is not available in 2006.

6. This check uncovered widespread overreporting and a pattern of overreporting that differed significantly across race and ethnicity.

congressional district, and the entire array of individual demographic characteristics that have been shown to be linked to turnout. The key test is not whether turnout is lower in strict voter ID states but instead whether there is a differential impact of these laws on racial and ethnic minorities, ceteris paribus. Thus, the key variables in these regression models are the interactions between race and the presence of strict voter ID laws.

With this new data we believe that we have been able to rectify the core problems of existing studies and can thus offer a more definitive test of voter identification laws. In doing so, we find that strict voter identification laws substantially alter the makeup of who votes and ultimately skew democracy in favor of whites and those on the political right. These laws have a significant impact on the representativeness of the vote and the fairness of democracy.

A THEORY AND POTENTIAL MECHANISMS

Before proceeding, it is important to think through exactly why and how voter identification laws might differentially affect voter turnout. There may be two distinct potential mechanisms that might exacerbate racial, class, age, and/or partisan gaps in turnout.[7] The first is direct. Individual citizens who do not have the required identification will learn about the identification requirements and will decide not to vote or will try to vote and will be turned away at the polls.[8] Eligible voters who lack valid identification could, of course, choose to acquire the necessary identification, but past research clearly demonstrates that any additional hurdle to voting, however small or large, can have a substantial impact on the likelihood of voting—especially among low-propensity voters (Leighley and Nagler 2014; Verba, Schlozman, and Brady 1995). The fact that other small state-level institutional barriers, like registration deadlines, have been shown to have an impact on turnout further implies that voter ID could matter (Burden et al. 2014; Larocca and Kleminski 2011). Since a lack of identification is particularly pronounced among racial minorities, the socioeconomically disadvantaged, younger voters, and those on the political left, the law should disproportionately reduce the turnout of these groups. This direct mechanism is the one that critics typically focus on.

But there is a second, more diffuse, mechanism that could also differentially affect turnout. Even if they have the proper identification, some citizens might feel targeted by these laws and might therefore choose not to participate (Carpenter and Foos 2016).[9] Where and when these laws are passed, members of certain groups might feel unwelcome at the polls. This is especially true for racial minorities, who have been the subject of election-related violence at different points in American history, but it could also affect those on the political left and potentially even younger socioeconomically disadvantaged voters (Kousser 1999; Parker 1990).

Unfortunately, while we suspect that each of these mechanisms is likely to contribute to differential declines in turnout, we cannot directly test each mechanism or distinguish between them with our data. The CCES, our main survey, does not ask respondents if they have identification, and it includes no questions about feelings of threat or alienation.[10] We can test to see if voter ID laws differentially lower turnout, but we cannot show how they do so.

7. A third potential mechanism is that campaigns, candidates, and parties may behave differently after voter ID laws are passed. If Democratic leaders believe that the passage of voter identification laws signals increased Republican dominance in these states, the Democratic Party might reduce its campaign expenditures and mobilization efforts. In alternate tests, we do find that respondents report significantly less mobilization by campaigns after strict ID laws are passed, but minorities, the poor, and Democrats do not report greater decreases in contact than whites, the well-off, or Republicans. Moreover, our results below hold after controlling for both campaign contact and campaign spending. All of this suggests that demobilization—or mobilization—by the Democratic Party and its candidates is not a major part of the voter ID law story.

8. The best most recent data suggest that about half of all voters without proper ID are aware of that fact. Barreto and Sanchez (2014) report that 50.2% of Texans who do not have proper identification are aware that they do not have a valid ID. If we assume that about 10% of eligible Latinos lack proper photo identification, the Texas data roughly match a 2012 Pew national survey data which found that 5% of Latino registered voters in strict photo ID states were aware that they do not have the proper identification (Pew 2012). As such, many voters without ID could simply choose not to go to the polls. But it is also quite possible that many voters are being turned away at the polls. Collecting data on polling place refusals is still in its infancy. Ansolabhere (2009) reports exceptionally low rates of refusals at the polls—well under 1% of all voters—but does not directly assess the rate for voters without proper identification or breakdown the refusal rate by race and the presence of a voter ID law. In our CCES data, a significantly higher share of minority voters in strict ID states report a problem with voter identification, but since that question is only asked for a small share of our CCES respondents, we are not confident in the results. Clearly, more work needs to be done to assess each of these two different factors.

9. Of course, the opposite is also possible: the threat of voter identification laws could mobilize voters into action.

10. There is, unfortunately, also limited evidence on these two different mechanisms outside of our data. We do know that there is widespread knowledge of these laws. Pew reports that 92% of registered voters in states with strict photo ID requirements are aware of these laws (Pew 2012). But that knowledge could have an impact on the voting behavior both of those without proper identification as well as those with it. There is also anecdotal evidence that minority voters feel disempowered by these laws, but there is no study that tests the effects of those attitudes on turnout (Carpenter and Foos 2016).

DATA

To assess the impact of voter identification laws on turnout, we utilize data from the 2006–14 Cooperative Congressional Election Studies (CCES). The CCES is a national stratified sample survey, administered over the Internet, of over 50,000 respondents by YouGov/Polimetrix. The CCES is the ideal tool for examining voter identification laws for three reasons. First, it provides a measure of the validated vote. Because each respondent who claims to have voted is checked against actual state voter files, the problem of overreporting by members of different groups is eliminated. Second, it covers recent years, including the years in which the first strict photo ID laws were passed. Given the relatively recent proliferation of strict voter identification laws, it is vital to include data up to the 2014 election. The third advantage of the CCES is its size and breadth. It includes a large and representative sample of respondents from every state.

Data on the strictness of voter identification laws in place in each state come from the National Conference of State Legislatures (NCSL). The NCSL maintains a database of all voter identification laws in effect in each state and in each election year. Scholars have typically measured the strictness of voter identification laws by distinguishing between states with (1) no document required to vote, (2) an ID requested, (3) a nonphoto ID required, (4) a photo ID requested, and (5) a photo ID required. We follow this convention for alternate tests. But for our main analysis, we single out strict identification laws—those that prevent the voter from casting a regular ballot if they cannot present appropriate identification—because we believe these stricter laws have the greatest potential to dramatically have an impact on turnout. These stricter laws make it easy for election administrators to prevent many voters from casting a regular ballot. Given estimates of the large number of Americans who do not have ready access to proper identification, the possibility of widespread effects is real. Moreover, it is these stricter laws that have garnered the lion's share of attention from voting rights activists and the media. That attention alone could be instrumental in dissuading large shares of the public from going to the polls. We begin by singling out strict identification laws—those that require an ID (coded as a 1 for all states that have these laws in place).[11] We then assess if there is a significant difference between strict ID laws that require a photo ID and those that allow some forms of nonphoto identification.[12]

The main goal in the analysis is to assess the differential effects of voter identification laws on the participation of distinct groups. In particular, we examine if these laws have a more pronounced effect on racial and ethnic minorities and those on the political left.

We focus on turnout in both general and primary elections. The main dependent variables—general and primary votes—are coded as 1 for a validated vote in that contest and 0 otherwise.[13]

In terms of race and ethnicity, we single out respondents who self-identified as white, black, Latino, or Asian American, or indicated that they were multiracial. To assess the political consequences of ID laws, respondents are asked their partisanship and liberal-conservative ideology. We employ a standard seven-point party identification scale and a standard five-point ideology scale. In each case, the key test is whether each of these individual characteristics interacts with voter identification laws and leads to especially large declines in turnout.

We also control for individual demographic characteristics that help to drive voter participation as shown in previous research (Verba et al. 1995). These include age (measured in years), education level (a six-point scale), family income (a 16-point scale), nativity (foreign born, first generation American, or other), gender, marital status (married or not), having children, being a union member, owning a home, being unemployed, and religion (Protestant, Catholic, Jewish, Atheist, or other).[14]

To isolate the effects of voter identification laws, we also have to incorporate other state-level electoral laws that encourage or discourage participation. Research assessing the permissiveness of a state's election laws typically assess if the state (1) allows early voting (Burden et al. 2014; Giammo and Box 2010), (2) has all-mail elections (Karp and Banducci 2000), and (3) allows no excuse absentee voting (Larocca and Klemanski 2011). Generally, the most important institutional factor driving state turnout is, however, the limit on the number of days before the election that residents can register to

11. For transparency and consistency, we code all state ID laws according to the NCSL. However, in contrast to the NCSL coding, we believe that Alabama should be viewed as a strict ID state in 2014. In alternate analysis, when we recode Alabama as a strict ID state, our results are essentially identical. Moreover, we also find that black turnout drops disproportionately in Alabama from 2010 to 2014.

12. Given the claim that the initial passage of these laws can temporarily fuel anger and voter mobilization, we add a dummy variable to test for this temporary mobilization (Citrin, Green, and Morris 2014).

13. Respondents who could not be matched to voter files are dropped from the analysis.

14. Since we expect the effects to be most pronounced for registered voters, we drop nonregistered respondents from our main analysis. The pattern of effects is similar either way.

vote (coded in days; Burden et al. 2014; Larocca and Klemanski 2011). All are included here.

Finally, to help identify the independent effect of ID laws, our analysis has to include the electoral context surrounding each particular election. For our analysis, this includes the political competitiveness of each state (measured as the margin of victory in the most recent presidential contest), the presence of different electoral contests (presidential election year, the presence of senatorial and gubernatorial elections), whether the senatorial and gubernatorial contests are open-seats or not, and whether the senatorial and gubernatorial contests are uncontested or not.

Given that our main dependent variables are coded 1 for voters and 0 for nonvoters, we employ logistic regressions.[15] To incorporate the nonindependence of respondents within each state, we cluster errors by state.

ID LAWS AND MINORITY TURNOUT

The critical question is not whether the average American is affected by voter identification laws. Rather it is whether these laws have a negative impact on minorities and other disadvantaged groups. To begin to assess this possibility, in figure 1, we simply compare turnout by race in strict voter ID states with turnout by race in nonstrict ID states without controlling for any other factors. The pattern in both primary and general elections is clear. There are substantial drops in minority turnout in strict voter ID states and no real changes in white turnout. Hispanic turnout is 7.1 percentage points lower in strict voter ID states than it is in other states in general elections and 5.3 points lower in primary elections. For blacks, the gap is negligible in general elections but a full 4.6 percentage points in primaries. For Asian Americans, the difference is 5.4 points and 6.2 points. And for multiracial Americans, turnout is 5.3 percentage points lower in strict voter ID states in general elections and 6.7 points lower in primary contests. White turnout is relatively flat, and, if anything, it increases slightly in strict identification states. The increase for white turnout in strict ID states is 0.2 percentage points in general elections and 0.4 points in primary elections.[16]

The end result is, in most cases, a substantial increase in the gap between white and nonwhite turnout in strict voter ID states. Latinos, for example, generally vote less frequently than whites, but in strict voter ID states the gap between Hispanics and whites increases by a full 7.3 percentage points in general elections and a similarly large 5.7 points in primary contests. The black-white, Asian American–white, and multiracial American–white gaps grow almost as much. In strict voter ID states, minorities are lagging further and further behind whites.

Of course, the pattern in figure 1 is only suggestive. The differential decline in minority turnout in strict voter ID states could have little to do with voter ID laws themselves and could instead be a factor of any number of different and unique features of states that pass strict voter ID laws or of the minorities who live in them. Strict voter ID states tend, for example, to also have more rigid registration deadlines and more limited vote-by-mail options.

To see if the sharp drop in minority turnout in strict voter ID states is, in fact, related to voter ID laws, we assess the effects of voter ID laws after controlling for a range of state-level electoral laws, campaign dynamics, and individual characteristics. To examine if Latino, black, Asian American, and multiracial American turnout is differentially and negatively affected by the presence of these laws, we add interactions between strict ID laws and each racial group.

The results, which are presented in the first two columns of table 1, suggest that minorities are being disproportionately and negatively affected. The effects are perhaps most consistent for Latinos, but across the different types of contests, there are strong signs that strict identification laws decrease turnout for Latinos, blacks, and Asian Americans, and some indications that they also do so for multiracial Americans. In general elections, Latinos are significantly more burdened by these laws than are whites and members of other groups. For blacks and Asian Americans, the interaction coefficient is negative but beyond the .05 significance level. In primary elections, Latinos, blacks, and Asian Americans are all significantly more affected and multiracial Americans are almost significantly more affected.

In all cases, the significant effects are politically meaningful. The models reveal substantial drops in turnout for minorities under strict voter ID laws. In the general elections, the model predicts that Latinos are 10% less likely to turn out in states with strict ID laws than in states without strict ID regulations, all else equal. These effects are almost as large in primary elections. Here, a strict ID law could be expected to depress Latino turnout by 9.3 percentage points, black turnout by 8.6 points, and Asian American turnout by 12.5 points.[17] Given the already low turnout of most of these groups across the country, these declines are all the more noteworthy.

15. We also re-ran our analysis using hierarchical linear models. The basic pattern of results did not change appreciably across multiple HLM specifications.

16. Our sample includes 32,064 whites, 6,429 African Americans, 1,897 Latinos, 459 Asian Americans, and 632 mixed-race Americans respondents residing in strict voter ID states.

17. For multiracial Americans, the drop is 6.6 percentage points, but it is not quite statistically significant.

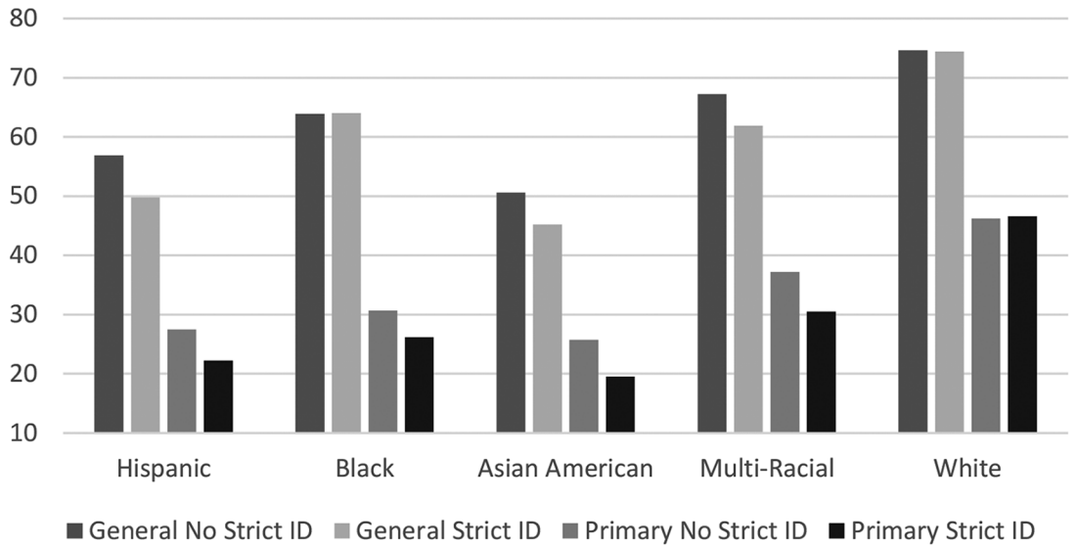

Figure 1. Strict ID laws and voter turnout by race

Importantly, as illustrated by figure 2, these laws serve not only to diminish minority participation but also to increase the gap in the participation rate between whites and nonwhites. For Latinos, in the general election, the predicted gap more than doubles from 4.9 percentage points in states without strict ID laws to 13.5 points in states with strict photo ID laws. The predicted Latino-white gap more than triples from 3.4 points to 13.2 in primaries. Likewise, for African Americans, the predicted gap in general contests increases from 2.9 points to 5.1 points, and in primaries more than quintuples from 2.5 points to 11.6 points. For Asian Americans, the predicted gap grows from 6.5 percentage points, to 11.5 points in general elections and from 5.8 points to 18.8 points in primaries. In the case of multiracial Americans, strict ID laws may be creating a racial disadvantage where there typically was none. Multiracial Americans voted at almost the exact same predicted rate as whites (a 0.1 point gap) in primaries in nonstrict ID states, but they were 7.1% less likely than whites to participate in primaries in strict ID states, all else equal.

Another, perhaps simpler, way to demonstrate the anti-minority nature of these laws is to focus on whites and include an interaction between strict voter ID laws and white identity. That is exactly what we do in the last two columns of table 1. Here we find that, in primaries, white Americans, as compared to all other racial and ethnic groups, are significantly advantaged by strict voter IDs. In general elections, we see the same pattern, but it is only significant at the $p < .10$ level. White Americans already generally participate at higher rates than others, but when states institute strict voter ID laws, that advantage grows measurably.

Skeptics might at this point contend that the patterns we see in table 1 and figure 2 are driven less by strict voter identification laws themselves and more by the political conditions in the states that pass and implement these laws. One could plausibly argue that some of the factors that lead states to enact voter identification laws in the first place are also having an impact on the relative turnout of different groups. To begin to address this concern, in an alternate analysis, we incorporated a range of political and demographic factors that have been shown to be linked to the proposal or passage of voter identification laws (Bentele and O'Brien 2013).[18] Few of these variables had a significant impact on the likelihood that any individual would vote (after controlling for individual characteristics), and none substantially altered the main findings relating to the impact of voter ID on minority turnout.

Nevertheless, skeptics might still contend that we cannot control for all of the relevant state-level and campaign specific factors that affect turnout. We can address this broader concern by focusing our analysis only on self-identified Democrats. If minority turnout is especially low in certain states because Republicans are dominant in these states, then we should find that all Democrats—white and nonwhite alike—turn out at especially low rates in these states. On the other hand, if we find that voter ID laws depress the participation of racial and ethnic minority Democrats more than they affect the turnout of white Democrats, then the effects cannot be due to the dominance of Republicans in voter ID states. If the racialized pattern persists when we only look at Democrats,

18. Specifically, we added a series of different measures of (*a*) the partisanship of the state political leadership, (*b*) the partisanship and ideology of the public, (*c*) the level of partisan competition in the state, and (*d*) racial demographics (see the appendix).

Table 1. The Impact of Strict Voter ID Laws on Minority Turnout

	General Election Turnout (1)	Primary Election Turnout (2)	General Election Turnout (3)	Primary Election Turnout (4)
Voter ID law:				
Strict voter ID required	−.102	.022	−.246	−.331*
	(.148)	(.132)	(.169)	(.138)
Strict voter ID × Black	−.112	−.397**		
	(.102)	(.116)		
Strict voter ID × Latino	−.391**	−.448**		
	(.119)	(.121)		
Strict voter ID × Asian	−.219	−.637*		
	(.210)	(.250)		
Strict voter ID × Mixed race	−.225	−.309+		
	(.144)	(.181)		
Strict voter ID × White			.146+	.357**
			(.077)	(.063)
Demographics:				
Black	−.174**	−.104		
	(.054)	(.065)		
Latino	−.289**	−.143+		
	(.081)	(.086)		
Asian	−.370**	−.251*		
	(.108)	(.117)		
Mixed race	.039	.007		
	(.065)	(.101)		
White			.147**	.058
			(.039)	(.040)
Foreign born	−.427**	−.297**	−.493**	−.342**
	(.059)	(.079)	(.055)	(.078)
First generation	−.066*	−.028	−.119**	−.053
	(.032)	(.049)	(.034)	(.052)
Age	.030**	.034**	.030**	.034**
	(.001)	(.001)	(.001)	(.001)
Education	.163**	.146**	.163**	.147**
	(.012)	(.008)	(.012)	(.008)
Income	.042**	.026**	.042**	.026**
	(.005)	(.005)	(.005)	(.005)
Gender: male	.177**	.194**	.178**	.196**
	(.026)	(.024)	(.025)	(.024)
Married	.074**	.026	.074**	.030
	(.020)	(.022)	(.019)	(.022)
Have children	−.199**	−.178**	−.201**	−.181**
	(.027)	(.028)	(.026)	(.028)
Union member	.243**	.141**	.244**	.141**
	(.031)	(.034)	(.030)	(.034)
Unemployed	−.099*	−.137**	−.100*	−.138**
	(.049)	(.050)	(.049)	(.050)
Own home	.347**	.335**	.347**	.338**
	(.032)	(.040)	(.033)	(.040)
Protestant	.194**	.239**	.196**	.238**
	(.028)	(.035)	(.029)	(.036)
Catholic	.123*	.093	.107*	.090+
	(.048)	(.058)	(.043)	(.053)

Table 1 (*Continued*)

	General Election Turnout (1)	Primary Election Turnout (2)	General Election Turnout (3)	Primary Election Turnout (4)
Jewish	.130	.050	.145	.060
	(.091)	(.085)	(.093)	(.085)
Atheist	.402**	.180**	.405**	.185**
	(.099)	(.049)	(.097)	(.049)
State electoral laws:				
Registration deadline	−.009	.003	−.009	.003
	(.007)	(.008)	(.007)	(.008)
Early voting	−.201	.170	−.213	.166
	(.168)	(.194)	(.174)	(.196)
Vote by mail	.074	.854**	.074	.857**
	(.259)	(.209)	(.261)	(.208)
No excuse absentee voting	.390**	.246*	.395*	.248*
	(.150)	(.107)	(.155)	(.108)
Electoral competition:				
First year of strict law	.216	.313*	.187	.304*
	(.187)	(.144)	(.183)	(.145)
Presidential election year	.924**	.341**	.921**	.342**
	(.111)	(.120)	(.111)	(.120)
Gubernatorial election year	.308**	.330*	.305**	.330*
	(.115)	(.128)	(.116)	(.129)
Senate election year	.117	−.057	.116	−.058
	(.095)	(.070)	(.095)	(.070)
State margin of victory	−1.114*	.262	−1.122*	.254
	(.520)	(.888)	(.519)	(.886)
Constant	−1.546**	−3.996**	−1.698**	−4.075**
	(.288)	(.272)	(.266)	(.271)
N	167,396	146,548	167,396	146,548
Pseudo R^2	.1234	.1065	.1224	.106

Note. Models include year fixed effects. Standard errors are in in parentheses.
$^{+}$ $p < .10$.
* $p < .05$.
** $p < .01$.

we can conclude that there is a clear racial effect of voter ID laws.

This is exactly what we find. Rerunning the analysis with Democrats only, we still find that Latino, Asian American, and multiracial American turnout is significantly more likely to be depressed by voter ID laws than white turnout (see the analysis in appendix table 1).

THE POLITICAL CONSEQUENCES OF VOTER IDENTIFICATION

Opponents of these strict voter ID laws also regularly claim that one of the main motivations behind the laws is to limit the participation of Democratic-leaning groups in order to benefit the Republican Party. Yet scholars have not directly tested this assertion.

In table 2, we examine the political consequences of voter ID laws by adding interaction terms between partisanship, political ideology, and strict photo ID laws. The political effects are not as consistent across general and primary elections as the racial effects, but there are clear ties between strict voter identification laws and turnout of different political groups. In primaries, the effects of voter identification laws are more pronounced and more negative for those on the political left. The positive and significant interactions between voter ID laws and both party identification and ideology indicate that Republicans and conservatives are

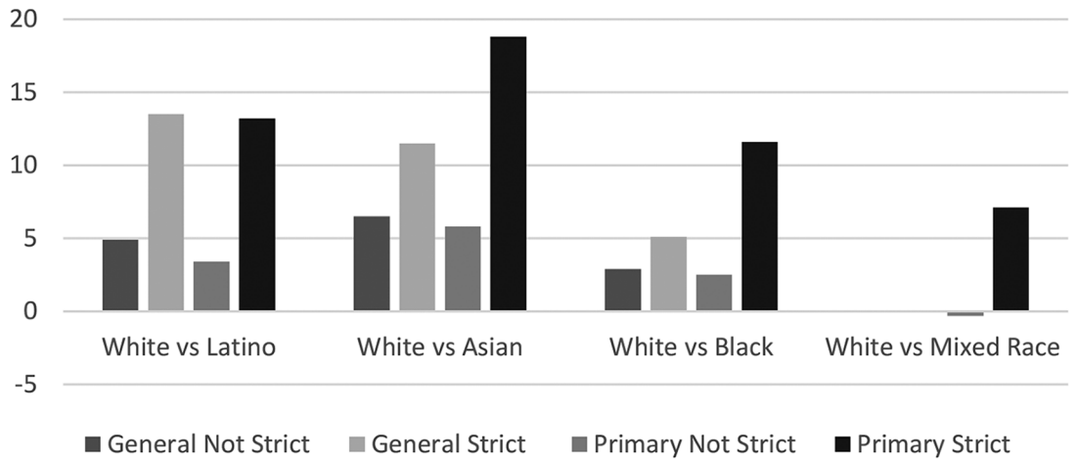

Figure 2. Photo ID laws and predicted racial gaps in turnout. Race-specific effect for white versus Asian and white versus black in general elections and multiracial effect in primaries are not significant at $p < .05$.

significantly less likely than Democrats and liberals to experience declines in turnout in primary contests when strict voter ID laws are in place.

These effects turn out to be substantial. Democratic turnout drops by an estimated 8.8 percentage points in primary elections when strict photo identification laws are in place. By comparison, the predicted drop for Republicans is only 3.6 percentage points. The skew for political ideology is even more severe. For strong liberals, the estimated drop in turnout in strict photo identification states is an alarming 7.9 percentage points. By contrast, strong conservatives actually vote at a slightly higher rate—4.8 points—in strict ID states, all else equal.

All of this has major political consequences. As figure 3 illustrates, the rate at which Republicans and conservatives outvote Democrats and liberals is much higher when strict photo laws are in place. All else equal, Republicans and conservatives tend to vote at slightly higher rates than Democrats and liberals, but that gap grows considerably in strict ID states. In particular, in primary elections, the model predicts that the turnout gap between Republicans and Democrats more than doubles from 4.3 percentage points to 9.8 percentage points when strict ID laws are instituted. Likewise, the predicted gap between conservatives and liberals more than doubles from 7.7 to 20.4 percentage points. These results suggest that by instituting strict photo ID laws, states can minimize the influence of voters on the left and can substantially alter the political leaning of the electorate.[19]

However, when we shift the focus to general elections, there is much less evidence of a partisan or ideological impact. Returning to models 1 and 2 in table 2, we see that neither of the interactions is significant. This suggests that, at least during general elections, Democrats and liberals are not more affected than Republicans or conservatives by the presence of strict voter ID laws. But that conclusion may be premature for two reasons. First, if we limit our analysis to the South, strict voter ID laws have a significant impact on the political skew of turnout in general elections (see appendix table 5). Second, the two general elections included in our data set—2008 and 2012—are unique in that Barack Obama was on the ballot in both contests. Third, when we single out the strictest voter ID laws—those that require photo identification, there are some signs that those on the left are most negatively affected—even in general elections (see appendix table 3).

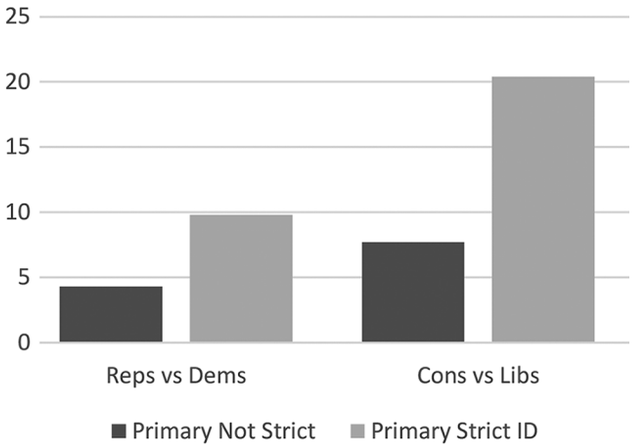

Figure 3. Predicted turnout gap by party and ideology

19. It appears that the political effects of strict ID laws are not driven entirely by lower turnout among racial and ethnic minorities. When we add racial interactions to the regression models in table 2, the political interactions are reduced in size but remain significant (see appendix table 7).

Table 2. The Political Impact of Strict Voter ID Laws

	General Election Turnout (1)	Primary Election Turnout (2)	General Election Turnout (3)	Primary Election Turnout (4)
Voter ID law:				
Strict voter ID required	−.146	−.495^{+}	−.134	−.268
	(.214)	(.260)	(.174)	(.188)
Strict voter ID × Party ID			−.000337	.0564**
			(.00773)	(.0190)
Strict voter ID × Ideology	.000827	.137**		
	(.0257)	(.0470)		
Political leaning:				
Party ID (High = Republican)			.0252**	.0289*
			(.00586)	(.0118)
Ideology (High = conservative)	.0656**	.0831**		
	(.0129)	(.0266)		
Demographics:				
Black	−.173**	−.143*	−.154**	−.0957
	(.0479)	(.0575)	(.0547)	(.0612)
Latino	−.326**	−.186*	−.325**	−.170^{+}
	(.0822)	(.0873)	(.0892)	(.0889)
Asian	−.389**	−.295**	−.370**	−.295*
	(.103)	(.112)	(.0999)	(.122)
Mixed race	.0146	−.0331	.0173	−.0358
	(.0609)	(.0952)	(.0604)	(.0906)
Foreign born	−.418**	−.288**	−.419**	−.277**
	(.0601)	(.0801)	(.0632)	(.0788)
First generation	−.0643*	−.0286	−.0557	−.0289
	(.0324)	(.0498)	(.0364)	(.0515)
Age	.0294**	.0334**	.0292**	.0334**
	(.00139)	(.00140)	(.00147)	(.00138)
Education	.168**	.153**	.157**	.143**
	(.0117)	(.00823)	(.0121)	(.00775)
Income	.0414**	.0256**	.0403**	.0242**
	(.00466)	(.00506)	(.00485)	(.00525)
Gender: male	.165**	.172**	.148**	.166**
	(.0254)	(.0230)	(.0249)	(.0232)
Married	.0602**	.00403	.0633**	.0111
	(.0193)	(.0215)	(.0204)	(.0227)
Have children	−.207**	−.189**	−.193**	−.180**
	(.0260)	(.0282)	(.0254)	(.0284)
Union member	.253**	.157**	.246**	.161**
	(.0294)	(.0316)	(.0302)	(.0313)
Unemployed	−.0966*	−.139**	−.0784	−.131**
	(.0479)	(.0494)	(.0477)	(.0488)
Own home	.341**	.329**	.336**	.333**
	(.0323)	(.0411)	(.0321)	(.0415)
Protestant	.168**	.188**	.166**	.195**
	(.0284)	(.0327)	(.0295)	(.0334)
Catholic	.106*	.0626	.109*	.0715
	(.0476)	(.0563)	(.0490)	(.0580)
Jewish	.148^{+}	.0644	.125	.0684
	(.0854)	(.0852)	(.0886)	(.0838)
Atheist	.451**	.254**	.421**	.215**
	(.104)	(.0535)	(.106)	(.0506)

Table 2 (*Continued*)

	General Election Turnout (1)	Primary Election Turnout (2)	General Election Turnout (3)	Primary Election Turnout (4)
State electoral laws:				
Registration deadline	−.00904	.00244	−.00922	.00264
	(.00732)	(.00832)	(.00754)	(.00830)
Early voting	−.199	.167	−.201	.177
	(.168)	(.195)	(.169)	(.197)
Vote by mail	.0759	.847**	.0622	.857**
	(.257)	(.209)	(.257)	(.209)
No excuse absentee voting	.390**	.248*	.387*	.236*
	(.149)	(.110)	(.151)	(.113)
Electoral competition:				
First year of strict law	.180	.272+	.181	.270+
	(.182)	(.153)	(.189)	(.156)
Presidential election year	.924**	.346**	.903**	.331**
	(.110)	(.119)	(.110)	(.118)
Gubernatorial election year	.305**	.330*	.303**	.327*
	(.114)	(.128)	(.114)	(.128)
Senate election year	.116	−.0623	.111	−.0671
	(.0946)	(.0699)	(.0975)	(.0695)
State margin of victory	−1.099*	.262	−1.120*	.274
	(.519)	(.891)	(.532)	(.892)
Constant	−1.713**	−4.198**	−1.514**	−4.008**
	(.289)	(.293)	(.304)	(.279)
N	166,856	146,483	163,874	143,297
Pseudo R^2	.1234	.1078	.1173	.1047

Note. Models include year fixed effects. Standard errors are in parentheses.
+ $p < .10$.
* $p < .05$.
** $p < .01$.

Another way to assess the political effects of voter ID laws is to look at how they effects the mix of views on race and immigration that are present at the polls. We did exactly that in alternate tests, where we found that the share of voters with anti-immigrant and anti-minority views grows substantially when strict voter identification laws are in place (see appendix table 2).

WHICH IDENTIFICATION LAWS MATTER

Up to this point, we have been focusing on strict identification laws—those laws that require identification in order for one's vote to count. But there are other ways of distinguishing between different types of voter identification laws. One possibility is to single out strict voter identification laws that require photo identification. These strict photo identification laws garner a lot of attention and have received some of the greatest criticism. When we test to see if these strict photo identification laws have more pronounced effects than strict nonphoto identification laws, we find that for the most part the effects are statistically indistinguishable. Both negatively affect minority turnout at roughly the same rate.

It is also possible that state laws that request but do not require identification also matter.[20] However, we could find no effects for state laws that merely requested that voters provide identification. Turnout was not noticeably higher or lower in states that requested identification (whether it was a photo identification or not), and we find no significant interactions between race and the presence of a law that requested voter identification. Put simply, there was no discernable difference between states that have no voter identification laws and those that request some form of identification (photo or otherwise). While we are not certain why these kinds of laws had little impact, we surmise it could be one

20. In these states, voters typically only need to sign a form in order to vote.

of two things. First, it could be that residents know that they can ultimately vote without an ID and thus are not deterred. Second, it could be that minorities and others do not feel as threatened by these more lenient laws.

ROBUSTNESS

To help ensure that the relationships we have identified are accurate, we performed a series of robustness checks.[21] First, we added a range of different independent variables to the model that might be related to turnout. In particular, to further control for the competitiveness of the election and different aspects of mobilization, we tested several different measures of state and district campaign spending, whether or not there was an open seat in the respondent's house district, whether or not there was an open seat in the Senate contest in the state, whether or not there was an open seat in the gubernatorial election, and, finally, whether or not each respondent indicated they had been contacted or mobilized by one of the campaigns. Likewise, to ensure we had not missed individual characteristics that might have an impact on turnout, in alternate tests, we augmented the basic regression model with measures for years living in the current residence, church attendance, religiosity, being born again, and several different variants of education and income. None of these variables altered the basic conclusions of our analysis (see appendix table 4).

In another critical test, we shifted to an analysis that incorporated both state and year fixed effects. By adding dummy variables for every state and every year, we essentially control away all of the features that are unique to each state and each election year. If a state was more Republican or more anti-minority in ways that we did not measure or in ways that are not measurable at all, that difference was soaked up with the fixed effects. In the end, the fixed effects model should tell us how turnout differs from the norm in each individual state when voter ID laws are enacted and thus should get us closer to an estimate of the change due specifically to implementation of voter identification laws. This "difference-in-differences" design is among the most rigorous ways to examine panel data.

The fixed effects analysis, which is displayed in the appendix (appendix table 6), tells essentially the same story as our other analysis. Racial and ethnic minorities and liberals and Democrats are especially hurt by strict voter identification laws.

Finally, we attempted to drill down into the data even further by looking at changes in turnout in individual states when they first enact new voter ID laws. Following GAO (2014), Hood and Bullock (2012), and Keele and Minozzi (2013), we undertook a series of simple, bi-variate difference-in-difference tests where we compared changes in turnout in states with newly enacted strict voter identification laws to changes in turnout in comparable states that did not enact new strict voter identification laws over the same time period. In particular, with our data, we focused on changes in turnout in Mississippi, North Dakota, and Texas between 2010 and 2014 (all of those states implemented strict ID laws in 2014), changes in turnout in Tennessee and Kansas between 2008 and 2012 (both states implemented strict photo ID laws in 2012), and changes in turnout in Georgia and Indiana between 2006 and 2010 (both states implemented strict photo ID laws in 2008).

The overall pattern generally fits the story we have told here. As figure 4 shows, the black-white and the Latino-white turnout gaps tended to grow substantially more in Mississippi, North Dakota, and Texas when strict voter ID laws were introduced in those states than in other states over the same years. Specifically the black-white gap increased by 1.4 percentage points more in general elections and 7.7 points more in primary elections in these states than elsewhere over the same period. The extra gap between Latino and white turnout in these states was 2.5 points in the general election and 7.3 points in the primary.[22]

The pattern in earlier years is similar.[23] The gap between minority and white turnout generally grew more in Tennessee and Kansas between 2008 and 2012 when those two states enacted strict voter ID laws for the first time than it did in other states. Likewise, the Latino-white gap grew more in Indiana and Georgia from 2006 to 2008 when strict ID laws were instituted than the average across other states over the same two years.

21. Given the South's history of racially discriminatory voter disenfranchisement, we repeated all of the analysis separately on Southern and non-Southern states (see appendix table 5). Interestingly, the effects of voter ID laws in the South were often similar to their effects in the non-South. There were, however, some signs that the political consequences of voter ID laws were more pronounced in the South (voter ID laws skewed turnout toward the political right in both general elections and primaries in the South).

22. The racial gap in turnout also grew substantially in Alabama in 2014 when that state implemented an ID law that we consider as a strict ID law but is coded otherwise by the NCSL. Between 2010 and 2014, the black-white gap in turnout increased by 9.6 points more in the general election (and 1.1 points more in the primaries) in Alabama than in the rest of the nation over the same time period.

23. We also find some of the same patterns for politics. For example, between 2010 and 2014, the Democrat-Republican turnout gap declined by 4.3 points less in states that enacted strict ID laws than it did in other states.

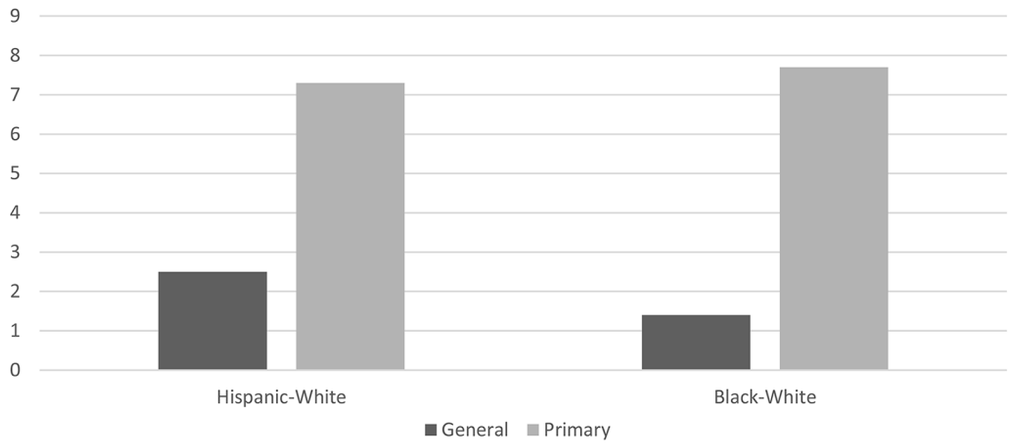

Figure 4. Increase in racial gap in states enacting strict ID laws in 2014 (relative to change in other states with no new law)

But we view these tests with considerable skepticism for two reasons. First, although we have a large data set, when we focus on the turnout of a particular minority group in a particular state in a particular year, our *N*s get quite small, samples are less likely to be representative, and presumably the errors in our estimates get very large.[24] This is less of a problem when looking at overall aggregate turnout, but it becomes severe when focusing on differential changes in turnout for minority groups like Latinos and African Americans. The problem is even worse for multiracial Americans and Asian Americans, who make up even smaller shares of the electorate in these state subsamples. Second, it is extraordinarily difficult when focusing on one or two states in one particular year to be confident that other changes in the state were not responsible for changes in turnout or to be able to generate comparison states that are even roughly identical on the range of factors that could affect turnout or minority relations.[25] Given these concerns, we have chosen to highlight the time-series, cross-section analysis that both compares across all states and incorporates changes within states over time. By incorporating more state-years, and thus more variation in state laws, and by controlling for the main factors that we think drive turnout or lead to the passage of voter identification laws, we should arrive at a more accurate estimate (Alvarez et al. 2008).

Despite all of these tests, we readily admit that our analysis cannot definitively show a causal connection between voter ID laws and turnout (Erikson and Minnite 2009; Keele and Minozzi 2013). States that pass voter ID laws are likely to be different from states that do not pass these laws on a number of different dimensions that we cannot yet identify.

IMPLICATIONS

Voter ID laws may represent one of the nation's most important civil rights issues. Voter ID laws have the potential to affect who votes and who does not, and in doing so these laws could substantially effect who governs and ultimately who wins and who loses in American democracy. What is more, these voter ID laws are becoming stricter and more common. Prior to 2006, no state required identification to vote. Today, 11 states have a strict ID requirement. In 2013 alone, legislators in six states moved to strengthen their voter ID laws. The stakes for American democracy are high and growing higher by the year.

Moreover, the fate of these laws is far from certain. Opponents of these laws have repeatedly challenged these laws in the courts and are likely to continue to do so in the future. As such, there is every chance that the courts will determine whether these laws endure or not. The final decision may well rest with the Supreme Court, which has yet to come down firmly on either side of the debate.

All of this means that there is a desperate need for hard empirical evidence. Given upcoming legal challenges and the rapidly changing nature of the laws across the states, there is a chance that clear, objective, and empirical answers to the core voter identification debates could actually sway outcomes.

For the courts and for American democracy, the core question should be, are these laws fair? Do they limit the access and participation of the nation's most disadvantaged? Are these laws racially discriminatory? The findings presented here strongly suggest that these laws do, in fact, have real consequences for the makeup of the voting population. Where

24. Thus, although the pattern was often the same, the differences were less likely to be significant.

25. Georgia, e.g., instituted expanded early voting hours at the same time it enacted strict voter ID.

they are enacted, racial and ethnic minorities are less apt to vote. The voices of Latinos, and to a slightly lesser extent those of blacks, Asian Americans, and multiracial Americans, all become more muted, and the relatively influence of white America grows. An already significant racial skew in American democracy becomes more pronounced.

All of this also has partisan and political consequences. Strict voter ID laws appear to diminish the participation of Democrats and those on the left, while doing little to deter the vote of Republicans and those on the right. They produce a clear partisan distortion.

The effects of voter ID laws are concerning in isolation. But they are perhaps even more alarming when viewed across the longer arc of American history. The effects of voter ID laws that we see here are in some ways similar to the impact of measures like poll taxes, literacy tests, residency requirements, and at-large elections that were used by the white majority decades and centuries ago to help deny blacks many basic rights (Filer, Kenny, and Morton 1991; Keyssar 2009; Kousser 1999; Parker 1990). Both sets of measures—new and old—were instituted by advocates who claimed they would help to ensure the integrity and legitimacy of democracy. Both sets of measures also serve to distort democracy and reduce the influence of racial minorities. The racially biased measures of old have since been condemned and revoked, but they were allowed to stand for long periods of American electoral history. What will happen with voter ID today?

For others, what makes voter ID laws more disturbing is that they are just one of the many different ways in which the electoral system is being altered today. Shortened early voting periods, repeal of same-day voter registration, reduced polling hours, a decrease in poll locations, and increased restrictions on voting by felons are all being regularly implemented at the state or local level, and all have been cited as having the potential to skew the electorate and American democracy (Giammo and Box 2010; Larocca and Klemanski 2011; Manza and Uggen 2004; Weiser 2014). Findings to date on these other electoral reforms are decidedly mixed (Gronke, Galanes-Rosenbaum, and Miller 2007; Gronke et al. 2008), but the patterns presented in our article suggest the need for further research about this broad suite of voter access legislation. All of this, coupled with the Supreme Court's skepticism about the necessity of the Voting Rights Act in its 2013 *Shelby v. Holder* (557 U.S. 193) ruling, could dramatically alter the nature of American elections moving forward.

It is important to recognize that this article is far from the last word on voter identification. These laws are relatively new and have had only a brief period of time to take effect. As a result, the impact of these laws may change over time. In addition, we remain uncertain as to exactly how these laws work to skew turnout. We have shown that voter ID laws suppress minority turnout but not how they do so. It could be that more minorities do not have the requisite ID, that the costs of obtaining an ID are too high for minorities to bear, that passing these laws sends a signal to minorities that they are not wanted at the ballot box, or some combination of the above. We simply do not know. And we need to know.

We also do not know why strict voter ID laws tend to have a more pronounced impact in primary elections. It may be that, in lower salience contests like primaries, any additional costs to voting disproportionately affects lower propensity black, Hispanic, and Asian American voters. But more work needs to be done on this front before we have firm answers.

Finally, there is a plethora of follow-up questions about all of the other changes that legislators have made to voter access. There are already a multitude of studies of how factors such as poll hours and locations affect turnout, but seldom do these studies directly test to see if the impact of these laws is more severe for minorities and the most disadvantaged Americans (Burden et al. 2014; Giammo and Box 2010; Larocca and Klemanski 2011; but see Manza and Uggen 2004). For example, does the recent reduction in early voting in the states mean that the gap between white turnout and minority turnout is expanding even more? Are shorter polling hours, as some suspect, further skewing American democracy? The more we answer these kinds of questions, the more we will be able to offer accurate assessments of the fairness of American democracy and the more we will be able to recommend a clear path forward.

ACKNOWLEDGMENTS

We would like to thank Gary Jacobson, Thad Kousser, Theda Skocpol, Paul Gronke, Ben Highton, Peyton McCrary, Mike Alvarez, Steve Ansolabehere, Mike McDonald, Bernard Fraga, and Myrna Perez for their advice and support on the project. We also thank our anonymous reviewers for their feedback. Previous versions of the manuscript were presented at the American Political Science Association and the Midwest Political Science Association.

REFERENCES

Abramson, Paul R., and William Claggett. 1991. "Racial Differences in Self-Reported and Validated Turnout in the 1988 Presidential Election." *Journal of Politics* 53 (1): 186–97.

Ahlquist, John S., Kenneth Mayer, and Simon Jackman. 2014. "Alien Abduction and Voter Impersonation in the 2012 US General Election: Evidence from a Survey List Experiment." *Election Law Journal* 13 (4): 460–75.

Alvarez, Michael, Delia Bailey, and Jonathan Katz. 2008. "The Effect of Voter Identification Laws on Turnout." Social Science Working Paper no. 1267R, California Institute of Technology, Pasadena, CA.

Alvarez, Michael, Delia Bailey, and Jonathan Katz. 2011. "An Empirical Bayes Approach to Estimating Ordinal Treatment Effects." *Political Analysis* 19 (1): 20–31.

Ansolabehere, Stephen. 2009. "Effects of Identification Requirements on Voting: Evidence from the Experiences of Voters on Election Day." *PS: Political Science and Politics* 42 (1): 127–30.

Ansolabehere, Stephen. 2014. "Declaration in Marc Veasey et al. v. Rick Perry et al.: United States District Court, TX, Southern District of Texas, Corpus Christi Division." Civil Action no. 2:13-cv-193 (NGR), September 16.

Ansolabehere, Stephen, and Eitan Hersh. 2012. "Validation: What Big Data Reveal about Survey Misreporting and the Real Electorate." *Political Analysis* 20 (4): 437–59.

Atkeson, Lonna Rae, Lisa A. Bryant, Thad E. Hall, Kyle L. Saunders, and Michael Alvarez. 2010. "A New Barrier to Participation: Heterogeneous Application of Voter Identification Policies." *Electoral Studies* 29 (1): 66–73.

Atkeson, Lonna Rae, Yann P. Kerevel, R. Michael Alvarez, and Thad E. Hall. 2014. "Who Asks for Voter Identification? Explaining Poll-Worker Discretion." *Journal of Politics* 76 (4): 944–57.

Barreto, Matt, Stephen Nuno, and Gabriel Sanchez. 2009. "The Disproportionate Impact of Voter ID Requirements on the Electorate: New Evidence from Indiana." *PS: Political Science and Politics* 42 (1): 111–16.

Barreto, Matt, and Gabriel Sanchez. 2014. "Accepted Photo Identification and Different Subgroups in the Electorate." Expert Report Submitted on Behalf of Plaintiffs in *Veasey v. Perry*, Case 2:13-cv-00193, June 27. http://www.latinodecisions.com/blog/wp-content/uploads/2014/10/Texas-Voter-ID-Expert-Report_Barreto_Sanchez.pdf.

Bentele, Keith G., and Erin E. O'Brien. 2013. "Jim Crow 2.0? Why States Consider and Adopt Restrictive Voter Access Policies." *Perspectives on Politics* 11 (4): 1088–1116.

Burden, Barry C., David T. Canon, Kenneth R. Mayer, and Donald P. Moynihan. 2014. "Election Laws, Mobilization, and Turnout: The Unanticipated Consequences of Election Reform." *American Journal of Political Science* 58 (1): 95–109.

Carpenter, Josh, and Florian Foos. 2016 "Beyond the Submerged State: Exploring the Limits of Policy-Based Mobilization." Presented at the annual conference of the Midwest Political Science Association, Chicago, April 7.

Citrin, Jack, Donald P. Green, and Levy Morris. 2014. "The Effects of Voter ID Notification on Voter Turnout: Results from a Large-Scale Field Experiment." *Election Law Journal* 13 (2): 228–42.

Cobb, Rachael, James Greiner, and Kevin Quinn. 2012. "Can Voter ID Laws Be Administered in a Race-Neutral Manner? Evidence from the City of Boston in 2008." *Quarterly Journal of Political Science* 7 (1): 1–33.

Coren, Courtney. 2014. "Rasmussen Poll: 78 Percent of Voters Support Voter ID Laws." *Newsmax*, March 25.

Dropp, Kyle. 2014. "Voter Identification Laws and Voter Turnout." Unpublished manuscript.

Erikson, Robert S., and Lorraine Minnite. 2009. "Modeling Problems in the Voter Identification—Voter Turnout Debate." *Election Law Journal* 8 (2): 85–101.

Filer, John E., Lawrence W. Kenny, and Rebecca B. Morton. 1991. "Voting Laws, Educational Policies, and Minority Turnout." *Journal of Law and Economics* 34 (October): 371–93.

Giammo, Joseph D., and Brian J. Box. 2010. "Reducing the Costs of Participation: Are States Getting a Return on Early Voting?" *Political Research Quarterly* 63 (2): 295–303.

GAO (US Government Accountability Office). 2014. "Issues Related to State Voter Identification Laws." US Government Accountability Office, Washington, DC.

Gronke, Paul, Eva Galanes-Rosenbaum, and Peter A. Miller. 2007. "Early Voting and Turnout." *PS: Political Science and Politics* 40 (4): 639–45.

Gronke, Paul, Eva Galanes-Rosenbaum, Peter A. Miller, and Daniel Toffey. 2008. "Convenience Voting." *Annual Review of Political Science* 11: 437–55.

Hicks, William D., Seth C. McKee, Mitchell D. Sellers, and Daniel A. Smith. 2015. "A Principle or a Strategy? Voter Identification Laws and Partisan Competition in the American States." *Political Research Quarterly* 68 (1): 18–33.

Hood, M. V., and Charles Bullock. 2012. "Much Ado about Nothing? An Empirical Assessment of the Georgia Voter Identification Statute." *State Politics and Policy Quarterly* 12 (4): 394–414.

Karp, Jeffrey A., and Susan A. Banducci. 2000. "Going Postal: How All-Mail Elections Influence Turnout." *Political Behavior* 22 (3): 223–39.

Keele, Luke, and William Minozzi. 2013. "How Much Is Minnesota Like Wisconsin? Assumptions and Counterfactuals in Causal Inference with Observational Data." *Political Analysis* 21 (2): 193–216.

Keyssar, Alexander. 2009. *The Right to Vote: The Contested History of Democracy in the United States*. New York: Basic Books.

Kobach, Kris. 2011. "The Case for Voter ID." *Wall Street Journal*, May 23.

Kousser, J. Morgan. 1999. *Colorblind Injustice: Minority Voting Rights and the Undoing of the Second Reconstruction*. Chapel Hill: University of North Carolina Press.

Larocca, Roger, and John S. Klemanski. 2011. "US State Election Reform and Turnout in Presidential Elections." *State Politics and Policy Quarterly* 11 (1): 76–101.

Leighley, Jan E., and Jonathan Nagler. 2014. *Who Votes Now? Demographics, Issues, Inequality, and Turnout in the United States*. Princeton, NJ: Princeton University Press.

Lowry, Rich. 2014. "The Poll Tax That Wasn't." *Politico*, October 22.

Manza, Jeff, and Christopher Uggen. 2004. "Punishment and Democracy: Disenfranchisement of Nonincarcerated Felons in the United States." *Perspectives on Politics* 2 (3): 491–505.

Milyo, Jeffrey. 2007. "The Effects of Photographic Identification on Voter Turnout in Indiana." Report 0-2007, Institute of Public Policy, University of Missouri, Columbia, MO.

Mycoff, Jason, Michael Wagner, and David Wilson. 2009. "The Empirical Effects of Voter-ID Laws: Present or Absent." *PS: Political Science and Politics* 42 (1): 121–26.

NCSL (National Conference of State Legislatures). 2015. "Voter Identification Requirements." http://www.ncsl.org/research/elections-and-campaigns/voter-id.aspx.

Parker, Frank R. 1990. *Black Votes Count: Political Empowerment in Mississippi after 1965*. Chapel Hill: University of North Carolina Press.

Pew Research Center. 2012. "Broad Support for Photo ID Voting Requirements." http://www.people-press.org/2012/10/11/broad-support-for-photo-id-voting-requirements/.

Pitts, Michael J. 2013. "Photo ID, Provisional Balloting, and Indiana's 2012 Primary Election." *University of Richmond Law Review* 47 (3): 939–57.

Richman, Jesse T., Gulshan A. Chattha, and David C. Earnest. 2014. "Do Non-Citizens Vote in U.S. Elections?" *Electoral Studies* 36 (1): 149–57.

Rogowski, Jon C., and Cathy J. Cohen. 2014. "Black and Latino Youth Disproportionately Affected by Voter Identification Laws in the 2012 Election." In *Black Youth Project*. http://blackyouthproject.com/wp-content/uploads/2015/11/voter_id_effect_2012.pdf.

Shaw, Daron, Rodolfo O. de la Garza, and Jongho Lee. 2000. "Examining Latino Turnout in 1996: A Three-State, Validated Survey Approach." *American Journal of Political Science* 44 (2): 332–40.

Silver, Brian D., Barbara A. Anderson, and Paul R. Abramson. 1986. "Who Overreports Voting?" *American Political Science Review* 80 (2): 613–24.

Verba, Sidney, Kay Lehman Schlozman, and Henry E. Brady. 1995. *Voice and Equality: Civic Voluntarism in American Politics*. Cambridge, MA: Harvard University Press.

Vercellotti, Timothy, and David Anderson. 2006. "Protecting the Franchise or Restricting It? The Effects of Voter Identification Requirements on Turnout." Presented at the annual conference of the American Political Science Association, Philadelphia.

Voting Rights Institute. 2015. "The Real Costs of Voter ID Laws." Voting Rights Institute. http://assets.democrats.org/pdfs/photoid/Dems-report-real_cost_of_voting_ID.pdf.

Weiser, Wendy. 2014. "Voter Suppression: How Bad? (Pretty Bad)." Report, Brennan Center for Justice, New York.

White, Ariel R., Noah L. Nathan, and Julie K. Faller. 2015. "What Do I Need to Vote? Bureaucratic Discretion and Discrimination by Local Election Officials." *American Political Science Review* 109 (1): 1–14.

Erratum

In the article "Voter Identification Laws and the Suppression of Minority Votes" by Zoltan Hajnal, Nazita Lajevardi, and Lindsay Nielson, published ahead of print by the *Journal of Politics* on January 5, 2017, and in this issue, calculation errors required the removal of one sentence and the reworking of figure 4. The sentence was removed from the article's section Robustness, and the corrected figure appears below. The authors regret this error.

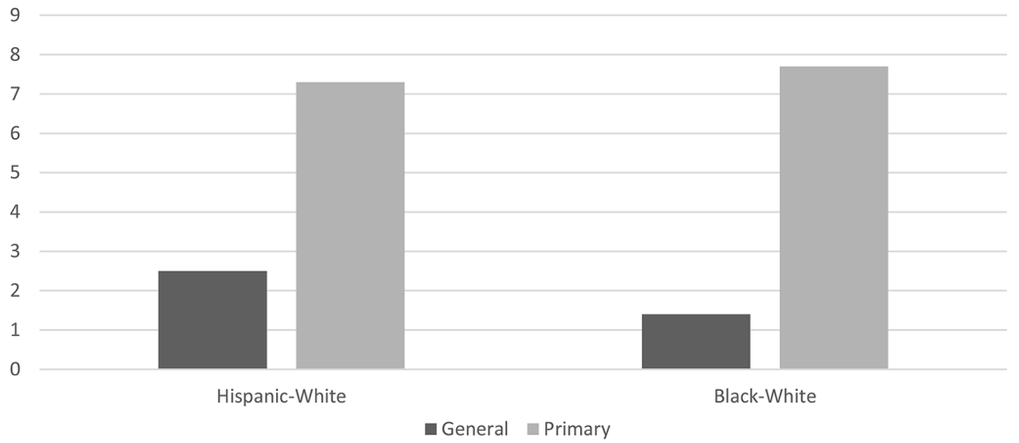

Figure 4. Increase in racial gap in states enacting strict ID laws in 2014 (relative to change in other states with no new law)

The Journal of Politics, volume 79, number 2. http://dx.doi.org/10.1086/691717
© 2017 by the Southern Political Science Association. All rights reserved.